RENTAL & LEASING SERVICES AGREEMENT

PREVIEW COPY - NOT FOR EXECUTION

This Rental & Leasing Services Agreement (this "Agreement") dated as of _____, 2026 (the "Effective Date"), is entered into by and between VACARYA LP, a Delaware limited partnership, with an address of 1207 Delaware Ave, Ste. #288, Wilmington, Delaware 19806 ("Vacarya"), and _____, an individual, with an address of _____ ("Partner").

WHEREAS, Vacarya is engaged in real estate rental and leasing ventures in the United States (the "Business");

WHEREAS, Partner seeks to secure information and services to enhance its own business ventures and operational structures as well as secure certain licensing opportunities set forth herein;

WHEREAS, Vacarya, directly and through its affiliates and contractors, performs certain obligations and functions that are part of, and/or related to, the Business;

WHEREAS, Vacarya desires to provide the Services (defined hereafter), and Partner desires to obtain the Services from Vacarya in connection with both Partner's potential engagement in the Business (as set forth herein) and to provide information and services to further Partner's own businesses.

NOW, THEREFORE, in consideration of the mutual covenants, terms and conditions set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. Services.

Vacarya shall provide Partner the Services described in this Agreement. Vacarya shall provide the Services in accordance with the terms and subject to the conditions set forth in this Agreement. Subject to Section 14, Partner acknowledges that Vacarya makes no warranty regarding the results to be attained by using the Services.

2. Training Location and Equipment.

Vacarya shall provide all Services remotely. The Services may be delivered through any combination of platforms at Vacarya's sole and absolute discretion, including but not limited to Vacarya's Skool community (https://www.skool.com/vacarya), Zoom, Microsoft Teams, Google Meet, WhatsApp, or any other audio, visual, or digital medium. Vacarya reserves the right to modify or substitute any delivery platform upon reasonable notice to Partner.

3. PARTNERSHIP BUY-IN

3.1 Partnership Buy-In.

The Partnership Buy-In applicable to this Agreement will be determined following the parties' discussion regarding the scope and structure of the partnership and will be set forth in the final Agreement prior to execution.

4. DESCRIPTION OF SERVICES

Vacarya shall provide the following Services in connection with Partner's short-term rental business.

4.1 License Agreement.

Upon payment of the Partnership Buy-In, Partner will become eligible to receive offers from Vacarya to enter into a Licensing Agreement, subject to the terms and conditions of this Agreement.

4.2 Dedicated Support.

Vacarya shall provide Partner with a dedicated one-on-one WhatsApp support channel for the duration of the Term. Support is available seven (7) days a week from 8:00 am (Eastern Standard Time) until 12:00 am (Eastern Standard Time). Vacarya shall use commercially reasonable efforts to respond to Partner inquiries within such support hours. Vacarya reserves the right to modify the support channel platform upon reasonable written notice to Partner.

4.3 Unlimited Pre-Approval Licensing Agreements.

A Partner will have access to a private channel to which Vacarya will offer on a non-exclusive basis pre-approved Licensing Agreements and the opportunity to enter into Licensing Agreements with Vacarya, subject to Section 5, Section 9 and Section 14.3 of the Agreement.

4.4 Access to Exclusive Done-For-You Services.

Vacarya will source, negotiate, set up, and prepare units to be Airbnb-ready on Partner's behalf. Furnishing and physical setup costs are billed separately and are not included in the Partnership Buy-In. All Done-For-You Services are subject to Section 5, Section 9, Section 14.3, and Section 14.4 of this Agreement.

4.5 Technology Stack & Revenue Management.

For each Licensed Unit, Vacarya shall provide Partner with access to Vacarya's technology stack for the operation of Partner's short-term rental business, comprising the following categories of tools, which as of the Effective Date include the named platforms or such substantially equivalent tools as Vacarya may designate from time to time:

(a) Property Management System - software for managing listings, reservations, and operations across booking channels (currently Hostaway);

(b) Guest Experience Platform - software providing enhanced guest-facing features, including self-service options such as early check-in (currently SuiteOP);

(c) Dynamic Pricing Software - software for automated, market-responsive pricing of Partner's listings (currently PriceLabs);

(d) Guest Communications Tool - AI-assisted software for managing guest messaging and inquiries (currently Hello Host);

(e) Revenue Management Services - the services of Vacarya's revenue management personnel, who shall monitor and adjust pricing for Partner's Licensed Units on an ongoing basis; and

(f) Direct Booking Site - each Licensed Unit operated on the Property Management System shall be eligible to be marketed on Vacarya's direct booking platform at stayvacarya.com, as determined by Vacarya from time to time.

4.6 Vacarya Operating System.

Vacarya shall provide Partner with access to the Vacarya Operating System ("VOS"), Vacarya's proprietary operational framework for establishing, operating, and scaling a short-term rental business. The VOS is delivered through Vacarya's Skool community platform at https://www.skool.com/vacarya and includes all operational manuals, systems, templates, and resources necessary to operate and grow Partner's Airbnb business. Access to the VOS is personal to the Partner and may not be shared, sublicensed, or transferred without Vacarya's prior written consent.

The VOS encompasses the following components:

1. Financial Information: Instruction on understanding and managing business financials, including, but not limited to, recommended operating procedures.

2. Business Setup: Guidance on the setup and structure of Partner's Business.

3. Understanding STR Market: In-depth exploration of the short-term rental market.

4. Market Research Techniques for effective market research within the STR industry.

5. Pitching to Landlords: Training on negotiating and securing deals with landlords.

6. Team Building: Advice on assembling and managing a team to operate Partner's STR business.

7. Property Acquisition and Design: Guidance on securing and aesthetically appealing designing of properties to attract potential renters.

8. Photography and Videography: Guidance on the production of high-quality visuals for Partner's properties.

9. Listing and Ranking: Methods for listing properties on various platforms and strategies for improving platform rankings.

10. Financial Management: Introduction to financial management tools, including the use of a financial checkbook for effective cash flow monitoring.

11. Channel Manager and Pricing Strategies: The use of a Channel Manager to explore potential pricing for properties and leases based on applicable and appropriate economic information and conditions.

4.7 Weekly Mastermind - Live Q&A Sessions.

Vacarya shall host a live group Q&A session once per week (each, a "Weekly Mastermind") open to all active partners. Weekly Masterminds are conducted remotely and provide Partner with the opportunity to submit questions and receive guidance directly from Vacarya on any aspect of operating and scaling Partner's short-term rental business. Vacarya shall use commercially reasonable efforts to hold a minimum of forty-eight (48) Weekly Masterminds per calendar year.

5. PROPERTY LAUNCH COST DISCLOSURE

Partner acknowledges and agrees that the Partnership Buy-In covers Vacarya's sourcing, licensing opportunities, onboarding, technology, training, operational systems, support, and the Done-For-You Services described in this Agreement.

The Partnership Buy-In does not include the third-party costs required to furnish, equip, stock, or otherwise prepare a property for operation as a short-term rental.

Partner shall be solely responsible for all costs associated with furnishing and launching each Licensed Unit, including, without limitation:

(a) furniture;

(b) décor;

(c) kitchenware and cookware;

(d) linens, towels, and bedding;

(e) televisions, electronics, and internet equipment;

(f) consumable guest supplies;

(g) cleaning equipment;

(h) inventory and replacement items;

(i) utility deposits;

(j) security deposits required by landlords;

(k) any other third-party expenses necessary to prepare a property for guest occupancy.

Vacarya may, but shall have no obligation to, assist Partner in coordinating or facilitating the procurement, installation, or delivery of such items as part of the Done-For-You Services.

Partner acknowledges that actual launch costs vary depending upon market, property size, furnishing standards, landlord requirements, local regulations, and other factors outside Vacarya's control.

Vacarya makes no representation or warranty regarding the total capital required to launch any individual Licensed Unit.

6. VACARYA'S COVENANTS

6.1 Vacarya Obligations.

Vacarya shall:

(a) appoint:

- **(i)** a Vacarya employee(s) to serve as a primary contact with respect to this Agreement and who will have the authority to act on behalf of Vacarya in matters pertaining to this Agreement (the "Vacarya Contract Manager"); and
- **(ii)** Vacarya personnel, who shall be suitably skilled, experienced and qualified to perform the Services (the "Vacarya Personnel").

(b) substitute the Vacarya Contract Manager and Vacarya Personnel throughout the Term (as defined in Section 10) of this Agreement except for changes in such personnel due to:

(i) Vacarya's sole and absolute discretion to replace the Vacarya Contract Manager and/or Vacarya Personnel;

(ii) Partner's request pursuant to Section 6.1(c); or

(iii) the resignation or termination of such personnel or other circumstances outside of Vacarya's reasonable control.

(c) upon the reasonable written request of Partner, promptly replace the Vacarya Contract Manager and any other training Vacarya personnel.

(d) obtain, and at all times during the Term of this Agreement maintain, all necessary licenses, certifications and consents and comply with all relevant laws applicable to the provision of the Services.

(e) comply with, and ensure that all Vacarya Personnel comply with, all rules, regulations and policies of Partner that are communicated to Vacarya in writing, including security procedures concerning systems and data and remote access thereto, building security procedures.

6.2 Vacarya Personnel Compensation.

Vacarya is responsible for the payment of all Vacarya Personnel compensation, including, if applicable, withholding of income taxes, and the payment and withholding of social security, and other payroll taxes, unemployment insurance, workers' compensation insurance payments, and disability benefits.

7. PARTNER COVENANTS

Partner shall not without Vacarya's prior written consent:

(a) copy Vacarya's copyrighted material;

(b) use Vacarya's trademarks, trade names, or other designations in any promotion or publication; or

(c) use recording equipment in training sessions.

8. INTELLECTUAL PROPERTY

All intellectual property rights, including copyrights, patents, patent disclosures and inventions (whether patentable or not), trademarks, service marks, trade secrets, know-how, and other confidential information, trade dress, trade names, logos, corporate names and domain names, together with all of the goodwill associated therewith, derivative works and all other rights (collectively, "Intellectual Property Rights") in and to all documents, work product and other materials that are delivered to Partner under this Agreement or prepared by or on behalf of Vacarya in the course of performing the Services (collectively, the "Deliverables") except for any Confidential Information of Partner or Partner-provided materials which shall be owned exclusively by Vacarya.

9. CONFIDENTIALITY

From time to time during the Term of this Agreement, either party (as the "Disclosing Party") may disclose or make available to the other party (as the "Receiving Party") non-public, proprietary, and confidential information (including, but not limited to, Intellectual Property) of Disclosing Party that, if disclosed in writing or other tangible form is clearly labeled as "confidential," or if disclosed orally, is identified as confidential when disclosed and within fifteen (15) days thereafter, is summarized in writing and confirmed as confidential ("Confidential Information"); provided, however, that Confidential Information does not include any information that:

(a) is or becomes generally available to the public other than as a result of Receiving Party's breach of this Section 9;

(b) is or becomes available to the Receiving Party on a non-confidential basis from a third-party source, provided that such third party is not and was not prohibited from disclosing such Confidential Information;

(c) was in Receiving Party's possession prior to Disclosing Party's disclosure hereunder; or

(d) was or is independently developed by Receiving Party without using any Confidential Information.

The Receiving Party shall:

(x) protect and safeguard the confidentiality of the Disclosing Party's Confidential Information with at least the same degree of care as the Receiving Party would protect its own Confidential Information, but in no event with less than a commercially reasonable degree of care;

(y) not use the Disclosing Party's Confidential Information or permit it to be accessed or used, for any purpose other than to exercise its rights or perform its obligations under this Agreement; and,

(z) not disclose any such Confidential Information to any person or entity, except to the Receiving Party's Group who need to know the Confidential Information to assist the Receiving Party, or act on its behalf, to exercise its rights or perform its obligations under this Agreement.

If the Receiving Party is required by applicable law or legal process to disclose any Confidential Information, it shall, prior to making such disclosure, use commercially reasonable efforts to notify Disclosing Party of such requirements to afford Disclosing Party the opportunity to seek, at Disclosing Party's sole cost and expense, a protective order or other remedy.

For purposes of this Section 9 only, "Receiving Party's Group" shall mean the Receiving Party's affiliates and its or their employees, officers, directors, shareholders, partners, members, managers, agents, independent contractors, sublicensees, subcontractors, attorneys, accountants, and financial advisors.

10. TERM

This Agreement shall commence as of the Effective Date and shall continue thereafter for one (1) year to which the Partner shall have continual access to the Services subject to Section 10 (the

"Initial Term"), unless and until earlier terminated as provided under this Agreement. Thereafter, this Agreement shall renew for additional successive one (1) year terms unless and until any party provides notice of its intent not to renew at least thirty (30) days before the end of the then-current Term, or unless and until earlier terminated as provided under this Agreement (each a "Renewal Term" and together with the Initial Term, the "Term").

If any party provides timely notice of its intent not to renew this Agreement, then unless earlier terminated in accordance with its terms, this Agreement terminates on the expiration of the then-current Term.

Notwithstanding the foregoing, Vacarya and Partner acknowledge and agree that Partner may not terminate this Agreement if Vacarya and Partner have any Licensing Agreements that will survive the termination of the then-current Term of this Agreement due to the fact that the lease in connection with the Licensing Agreement shall not terminate during the Term. For the avoidance of doubt, Partner may only terminate this Agreement so long as any Licensing Agreement(s), and the underlying leases, among the parties are terminated prior to the termination of the then-current Term of this Agreement.

11. TERMINATION

11.1 General Termination.

Either party may terminate this Agreement, effective upon written notice to the other party (the "Defaulting Party"), if the Defaulting Party:

(a) materially breaches this Agreement, and such breach is incapable of cure, or with respect to a material breach capable of cure, the Defaulting Party does not cure such breach within thirty (30) days after receipt of written notice of such breach;

(b) becomes insolvent or admits its inability to pay its debts generally as they become due;

(c) becomes subject voluntarily or involuntarily to any proceeding under any domestic or foreign bankruptcy or insolvency law, which is not fully stayed within seven (7) business days or is not dismissed or vacated within forty-five (45) business days after filing;

(d) is dissolved or liquidated or takes any corporate action for such purpose;

(e) makes a general assignment for the benefit of creditors; or

(f) has a receiver, trustee, custodian, or similar agent appointed by order of any court of competent jurisdiction to take charge of or sell any material portion of its property or business.

11.2 Immediate Termination by Vacarya.

Notwithstanding any other provision of this Agreement, Vacarya may immediately terminate this Agreement upon the occurrence of any of the following events:

(a) on written notice if Partner fails to pay any amount when due hereunder (including any amounts owed to Vacarya under any and all Licensing Agreements to which Vacarya and the Partner are a party to) and such failure continues for ten (10) days after Vacarya's written notice to Partner of nonpayment;

(b) Partner violates Section 9;

(c) Partner violates Section 16;

(d) Partner violates Section 23;

(e) Partner is deceased; or

(f) for any Partner that is an entity other than a person (including any type of business organization), if the Partner undergoes any change in beneficial ownership or there is any change in the ownership interests of the Partner.

12. INDEPENDENT CONTRACTOR

The details of the method and manner for performance of the Services by Vacarya shall be under its own control. Vacarya shall be solely responsible for supervising, controlling, and directing the details and manner of the completion of the Services. Nothing in this Agreement shall give Partner the right to instruct, supervise, control, or direct the details and manner of the completion of the Services. Vacarya is for all purposes hereunder an independent contractor and in no event will Vacarya be considered an agent or employee of Partner or any of its subsidiaries or affiliates for any purpose.

13. INDEMNIFICATION

Partner shall indemnify, defend and hold harmless Vacarya from and against any and all claims, losses, costs, liabilities, damages and expenses including, without limitation, penalties, fines and reasonable attorneys' fees, to the extent incurred in connection with or arising from this Agreement or any injury or damage caused by Partner. To the extent the actions of Partner inflicts harm on Vacarya, Vacarya and shall subrogate the claim to Partner and Partner will either address via legal process or simply cease such action.

14. LIMITED WARRANTY & NO GUARANTEE OF SUCCESS

14.1 Limited Warranty.

VACARYA MAKES NO WARRANTY AS TO RESULTS OR PROFITABILITY TO BE ATTAINED BY ACCESSING OR USING THE VACARYA OPERATING SYSTEM, THE SERVICES, OR ANY RELATED RESOURCES PROVIDED UNDER THIS AGREEMENT.

Partner acknowledges that outcomes are largely dependent on individual effort and local market conditions, which vary significantly and are beyond the control of Vacarya. Partner agrees to undertake their own due diligence and market research. All revenue projections provided by Vacarya, including any projections set forth in a Licensing Agreement or otherwise communicated to Partner, are illustrative only and are not guarantees of performance. Actual results may differ materially from any projections provided, and Vacarya makes no representation that any projected revenue figures will be achieved.

14.2 Disclaimer.

EXCEPT FOR THE EXPRESS WARRANTY SET FORTH IN SECTIONS 14.3 AND 14.4, VACARYA MAKES NO WARRANTY WHATSOEVER REGARDING THE SERVICES, INCLUDING ANY (A) WARRANTY OF MERCHANTABILITY; (B) WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE; OR (C) WARRANTY AGAINST

INFRINGEMENT OF INTELLECTUAL PROPERTY RIGHTS OF A THIRD PARTY; WHETHER ARISING BY LAW, COURSE OF DEALING, COURSE OF PERFORMANCE, USAGE OF TRADE, OR OTHERWISE.

PARTNER ACKNOWLEDGES THAT IT HAS NOT RELIED ON ANY REPRESENTATION OR WARRANTY MADE BY VACARYA, OR ANY OTHER PERSON ON VACARYA'S BEHALF, EXCEPT AS SPECIFICALLY PROVIDED IN SECTIONS 14.3 AND 14.4 OF THIS AGREEMENT.

PARTNER FURTHER ACKNOWLEDGES AND AGREES THAT IT HAS NOT RELIED UPON ANY REPRESENTATIONS, PROJECTIONS, FORECASTS, ESTIMATES, OR STATEMENTS, WHETHER ORAL OR WRITTEN, NOT EXPRESSLY SET FORTH IN THIS AGREEMENT, INCLUDING WITHOUT LIMITATION ANY REVENUE PROJECTIONS, INCOME ESTIMATES, OR FINANCIAL PERFORMANCE STATEMENTS. PARTNER REPRESENTS THAT IT HAS CONDUCTED ITS OWN INDEPENDENT INVESTIGATION AND HAS NOT BEEN INDUCED TO ENTER INTO THIS AGREEMENT BY ANY REPRESENTATION OR STATEMENT NOT CONTAINED HEREIN.

14.3 Sourcing Guarantee.

Vacarya guarantees that Partner will execute Partner's first lease agreement for a Licensed Unit within ninety (90) days of the Readiness Date (the "Guarantee Period"). The "Readiness Date" means the date on which Partner has completed formation of its business entity, opened an operational business bank account, and provided Vacarya with reasonable evidence of both.

If Partner has not executed its first lease agreement by the end of the Guarantee Period, Partner may elect, as its sole and exclusive remedy, either:

(a) a refund of the Partnership Buy-In, whereupon Vacarya's sourcing obligations under the Agreement shall terminate; or

(b) Vacarya's continued sourcing services, in which case Vacarya shall continue to present Partner with sourcing opportunities until Partner executes its first lease agreement, for so long as this Agreement remains in effect and Partner continues in good faith to pursue its initial Licensed Unit.

Partner's election of continued sourcing under clause (b) shall not waive any refund right; if Partner subsequently ceases to pursue a Licensed Unit and requests the refund, Vacarya shall issue the Partnership Buy-In refund and its sourcing obligations shall terminate.

Notwithstanding the foregoing, this guarantee shall be deemed satisfied, and no refund shall be owed, if during the Guarantee Period Vacarya presented Partner with two (2) or more sourcing opportunities that, in Vacarya's sole determination, met Vacarya's criteria for a successful property, and with respect to each such opportunity Partner:

(a) declined or rejected the opportunity;

(b) failed to respond to or take commercially reasonable steps to pursue the opportunity within five (5) business days of presentation; or

(c) pursued the opportunity but failed to execute a lease for reasons attributable to Partner, including without limitation Partner's financial qualifications, application materials, or delay.

Any of the foregoing shall constitute fulfillment of Vacarya's obligations under this Section.

14.4 Performance Guarantee.

Subject to Vacarya's determination, in its sole discretion, that Partner has satisfied all conditions set forth in this Section 14.4, Vacarya guarantees the following performance remedies with respect to each Licensed Unit of housing sourced and set up pursuant to the Partnership Buy-In under Section 3.1 and licensed to Partner under a Licensing Agreement (each, a "Licensed Unit").

(a) Eligible Partner Conditions.

To be eligible for any remedy under this Section 14.4, Partner must satisfy all of the following conditions, as determined by Vacarya in its sole discretion (the "Guarantee Conditions"):

(i) Partner has continuously operated the Licensed Unit for a minimum of twelve (12) consecutive calendar months (the "Performance Period"); and

(ii) Partner has maintained a minimum average guest rating of 4.8 stars on Airbnb throughout the Performance Period; provided that a period during which the rating fell below 4.8 stars shall not constitute a failure of this condition if Partner complied with the remediation obligations set forth below and the rating was restored to at least 4.8 stars within sixty (60) days of first falling below that threshold.

If the average guest rating for a Licensed Unit falls below 4.8 stars on Airbnb at any time during the Performance Period, Partner shall promptly undertake commercially reasonable efforts to restore and improve the Licensed Unit's rating, which shall include, at a minimum:

(i) attending each Weekly Mastermind session while the rating remains below 4.8 stars;

(ii) seeking guidance from Vacarya regarding the causes of the rating decline; and

(iii) implementing the corrective measures reasonably recommended by Vacarya.

Partner's compliance with this Section is a condition of the Performance Guarantee. If Vacarya determines, in its sole discretion, that Partner has failed to comply with this Section, Vacarya shall have no obligation to provide a Replacement Unit, notwithstanding Partner's satisfaction of any other eligibility conditions. Vacarya's determination under this Section shall be final and binding.

Failure to satisfy any one of the Guarantee Conditions shall render Partner ineligible for any remedy under this Section 14.4, and Vacarya shall have no obligation to provide any remedy otherwise available under this Section.

(b) Underperformance Remedy.

If Partner satisfies all Guarantee Conditions and the gross revenue generated by a Licensed Unit during the Performance Period is less than eighty percent (80%) of the revenue projection set forth in the applicable Licensing Agreement for such unit (the "Revenue Projection"), Partner may submit a written remedy request to Vacarya within thirty (30) days following the end of the Performance Period.

Upon receipt of a valid remedy request accompanied by Partner's revenue records for the Performance Period, Vacarya shall, at its sole election, either:

(i) source and present Partner with one (1) alternative qualifying unit of housing (the "Replacement Unit"), which may form part of a qualifying sourcing opportunity as defined in Section 14.3; or

(ii) take such other remedial action as Vacarya deems appropriate in its sole discretion.

For the avoidance of doubt, Partner shall be responsible solely for the reasonable third-party costs associated with physically transporting furnishings, inventory, and equipment from the original Licensed Unit to the Replacement Unit.

Vacarya shall remain responsible for sourcing the Replacement Unit and coordinating its launch in accordance with Vacarya's standard Done-For-You process. Partner shall not be responsible for duplicate furnishing purchases, redesign costs, repainting, or other setup expenses except to the extent such expenses arise solely from Partner-requested upgrades or modifications beyond Vacarya's standard launch specifications.

Vacarya's obligation under this Section 14.4(b) is limited solely to sourcing the Replacement Unit and does not extend to any operational, logistical, or physical transition costs.

Vacarya's obligation under this Section 14.4(b) shall be limited to a single Replacement Unit per Licensed Unit per Performance Period and shall not apply to underperformance attributable to Partner's acts or omissions, market conditions, regulatory changes, platform policy changes, force majeure events, or any other factor outside of Vacarya's reasonable control.

(c) Exclusive Remedy.

The remedies set forth in this Section 14.4 constitute Partner's sole and exclusive remedies with respect to the performance of a Licensed Unit, and shall not be construed as a guarantee of income, profit, or any particular financial outcome.

Nothing in this Section 14.4 shall limit or modify the limitation of liability set forth in Section 15.

15. LIMITATION OF LIABILITY

IN NO EVENT SHALL VACARYA BE LIABLE TO PARTNER OR TO ANY THIRD PARTY FOR ANY LOSS OF USE, REVENUE, OR PROFIT, OR FOR ANY CONSEQUENTIAL, INCIDENTAL, INDIRECT, EXEMPLARY, SPECIAL, OR PUNITIVE DAMAGES WHETHER ARISING OUT OF BREACH OF CONTRACT, TORT (INCLUDING NEGLIGENCE), OR OTHERWISE, REGARDLESS OF WHETHER SUCH DAMAGE WAS FORESEEABLE AND WHETHER OR NOT VACARYA HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, AND NOTWITHSTANDING THE FAILURE OF ANY AGREED OR OTHER REMEDY OF ITS ESSENTIAL PURPOSE.

IN NO EVENT SHALL VACARYA'S AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT, WHETHER ARISING OUT OF OR RELATED TO BREACH OF CONTRACT, TORT (INCLUDING NEGLIGENCE), OR OTHERWISE,

EXCEED ONE (1) TIMES THE AGGREGATE AMOUNTS PAID OR PAYABLE TO VACARYA PURSUANT TO THIS AGREEMENT.

16. NON-DISPARAGEMENT

Partner agrees and covenants that Partner shall not make, publish, or communicate defamatory or disparaging remarks, comments, or statements concerning any of Vacarya's products, services, or employees. Partner agrees and covenants that Partner shall not make, publish, or communicate to any person or entity or in any public forum any maliciously false, defamatory, or disparaging remarks, comments, or statements concerning Vacarya, or its businesses, or any of its employees, officers, or directors and its existing and prospective customers, suppliers, investors, and other associated third parties, now or at any time in the future.

17. NOTICES

Each party shall deliver all communications in writing either in person, by certified or registered mail, return receipt requested and postage prepaid, by email at reservations@stayvacarya.com (with confirmation of transmission), or by recognized overnight courier service, and addressed to the other party at the addresses set forth above (or to such other address that the receiving party may designate from time to time in accordance with this Section).

18. WAIVER

No waiver of any right, remedy, power, or privilege under this Agreement ("Right(s)") is effective unless contained in a writing signed by the party charged with such waiver. No failure to exercise, or delay in exercising, any Right operates as a waiver thereof. No single or partial exercise of any Right precludes any other or further exercise thereof or the exercise of any other Right. The Rights under this Agreement are cumulative and are in addition to any other rights and remedies available at law or in equity or otherwise.

19. ASSIGNMENT

19.1 Assignment Generally.

Neither party may directly or indirectly assign, transfer, or delegate any or all of its rights or obligations under this Agreement, voluntarily or involuntarily, including by Change of Control, merger (whether or not such party is the surviving entity), operation of law, or any other manner, without the prior written consent of the other party. Any purported assignment or delegation in violation of this Section shall be null and void. Vacarya, however, may subcontract the Services. This Agreement is binding upon and inures to the benefit of the parties and their respective successors and permitted assigns.

19.2 Assignment to Affiliates.

Notwithstanding any other provision of this Agreement, Partner may assign their rights and obligations, but shall also remain liable for all such obligations and entitled to such rights, to this Agreement to an "Affiliate(s)" at any time upon Partner sending written notice to Vacarya and upon receipt of the written consent from Vacarya to such assignment to such Affiliate(s). Vacarya shall not unreasonably withhold consent for an assignment to an Affiliate(s).

For the purposes of this Section 19, "Affiliate(s)" means, with respect to any Partner, any business organization or structure (including, but not limited to, corporations, partnerships, limited liability companies, or any combination thereof) that is, directly or indirectly (including through one or more intermediaries), controlled by, or is under common control with, such Partner or members of the Partner's immediate family (including spouse, descendants, siblings, and/or parents).

For purposes of this Section 19.2, "control," when used with respect to any specified business organization, shall mean the power, direct or indirect, to direct or cause the direction of the management and policies of such business organization, whether through ownership of voting securities or partnership or other ownership interests (but shall also require that the Partner hold at least fifty percent (50%) of the ownership of voting securities or partnership or other ownership interests of such business organization), by contract or otherwise.

Moreover, for the purposes of this Section 19, an "Authorized Affiliate(s)" shall mean any Affiliate that has received the written approval of Vacarya as an assignee by an assignment of the Partner.

19.3 Change of Control.

For the purposes of this Section 19, "Change of Control" means, with respect to the Partner or Authorized Affiliate(s):

(a) any sale or transfer (in one transaction or a series of transactions) to any one or more persons or entities of all or substantially all of the assets of the Partner or Authorized Affiliate(s);

(b) any sale, transfer or issuance (in one transaction or a series of transactions) to any one or more persons or entities of thirty percent (30%) or more of voting securities or partnership or other ownership interests of the Partner or Authorized Affiliate(s);

(c) any combination of the foregoing or other transaction or series of transactions having the effect of causing one or more persons or entities to have or exercise thirty percent (30%) or more of voting securities or partnership or other ownership interests; or

(d) any agreement, commitment or arrangement to affect any of the foregoing.

19.4 Effect of Assignment.

If Partner assigns, and Vacarya approves, the rights and obligations of Partner under this Agreement to an Authorized Affiliate(s), then such Authorized Affiliate(s) shall possess all rights and obligations of such Partner. For the avoidance of doubt, after the assignment to an Authorized Affiliate(s) is approved by Vacarya, any and all references to the "Partner" under this Agreement shall also be construed to include the Authorized Affiliate(s).

Regardless of any assignment made under this Section 19, Partner shall not be relieved of any of Partner's obligations hereunder and shall also retain all rights hereunder, unless expressly agreed to in writing by Partner and Vacarya.

20. THIRD PARTIES

Except for the parties, their successors and permitted assigns, there are no third-party beneficiaries under this Agreement.

21. FORCE MAJEURE

No party shall be liable or responsible to the other party, or be deemed to have defaulted under or breached this Agreement, for any failure or delay in fulfilling or performing any term of this Agreement (except for any obligations of Partner to make payments to Vacarya hereunder), when and to the extent such failure or delay is caused by or results from acts beyond the impacted party's ("Impacted Party") reasonable control, including, without limitation, the following force majeure events ("Force Majeure Event(s)"):

(a) acts of God;

(b) flood, fire, earthquake, or explosion;

(c) war, invasion, hostilities (whether war is declared or not), terrorist threats or acts, riot or other civil unrest;

(d) government order, law, or actions;

(e) embargoes or blockades in effect on or after the date of this Agreement;

(f) national or regional emergency;

(g) strikes, labor stoppages or slowdowns, or other industrial disturbances;

(h) telecommunication breakdowns, power outages or shortages, lack of warehouse or storage space, inadequate transportation services, or inability or delay in obtaining supplies of adequate or suitable materials; and

(i) other similar events beyond the reasonable control of the Impacted Party.

The Impacted Party shall give notice within five (5) days of the Force Majeure Event to the other party, stating the period of time the occurrence is expected to continue.

The Impacted Party shall use diligent efforts to end the failure or delay and ensure the effects of such Force Majeure Event are minimized.

The Impacted Party shall resume the performance of its obligations as soon as reasonably practicable after the removal of the cause.

In the event that the Impacted Party's failure or delay remains uncured for a period of thirty (30) consecutive days following written notice given by it under this Section 21, the other party may thereafter terminate this Agreement upon fifteen (15) days' written notice.

22. PROMOTIONAL MATERIAL

By entering into this Agreement, Partner hereby grants Vacarya and its respective affiliates the right to share and promote any positive outcomes, including but not limited to increased bookings, earnings, and positive testimonials, that result from this Agreement. This may include sharing screenshots, images, videos, and details of Partner's success stories on Vacarya's social media accounts, website, and other marketing channels.

Additionally, Partner agrees to allow Vacarya and its respective affiliates to record and share excerpts from any Zoom calls or other virtual meetings for promotional purposes.

Vacarya will ensure that any shared content reflects positively on both parties and will always strive to maintain Partner's confidentiality and privacy by excluding any sensitive information.

Partner may notify Vacarya in writing, at least twenty-four (24) hours in advance, if Partner has any concerns or specific content that Partner does not wish to be shared.

23. NON-COMPETE

23.1 Non-Compete.

Partner acknowledges the competitive nature of the Services and accordingly agrees, in connection with this Agreement, that for a period of four (4) years, commencing on the Effective Date (the "Restricted Period"), except on behalf of Vacarya or its affiliates, Partner shall not, and shall not permit any of its affiliates to, directly or indirectly:

(i) engage in or assist others in engaging in, or attempt to engage in or assist others in engaging in, any business that competes with the Services (the "Restricted Business") within the Restricted Territory.

For the purposes of this Section, "Restricted Territory" means any jurisdiction in which Vacarya or any of its Affiliates actively operates or conducts business, including any state, province, or territory in which Vacarya has sourced, licensed, manages, or services short-term rental properties as of the Effective Date or during the Restricted Period.

23.2 Engaging Third Parties.

During the Restricted Period, Partner shall not, and shall not permit any of its affiliates to, directly or indirectly, hire, engage, or solicit any person or entity who is or was employed in the Services and/or Restricted Business or engaged by Vacarya as an independent contractor during the Restricted Period, or encourage any such employee or independent contractor to leave or terminate such employment or engagement or hire any such employee or independent contractor who has left such employment or engagement, except pursuant to a general solicitation which is not directed specifically to any such employees or independent contractors of the Business.

24. ATTORNEYS' FEES

Each party to this Agreement shall be responsible for all costs it incurs in connection with the preparation, review, and negotiation of this Agreement, and the transactions, including any attorneys' or consultants' fees.

If any action is brought by either party against the other in connection with or arising out of this Agreement or any of the documents and instruments delivered in connection herewith or in connection with the transactions contemplated hereby, the prevailing party shall be entitled to recover from the other party its reasonable out-of-pocket costs and expenses, including, without limitation, reasonable attorneys' fees, incurred in connection with the prosecution or defense of such action. This includes the determination of the responsibility for fees and costs and the determination of the amount of fees and costs.

25. SEVERABILITY

If any term or provision of this Agreement is found by a court of competent jurisdiction to be invalid, illegal, or unenforceable in any jurisdiction, such invalidity, illegality, or unenforceability shall not affect any other term or provision of this Agreement or invalidate or render unenforceable such term or provision in any other jurisdiction.

26. GOVERNING LAW

This Agreement and all matters arising out of or relating to this Agreement, including tort and statutory claims are governed by, and construed in accordance with, the laws of Delaware, without giving effect to any conflict of laws provisions thereof that would result in the application of the laws of a different jurisdiction.

Either party may institute any legal suit, action, or proceeding arising out of or relating to this Agreement in the federal or state courts in each case located in Wilmington, Delaware.

EACH PARTY HEREBY IRREVOCABLY AND UNCONDITIONALLY:

(A) CONSENTS AND SUBMITS TO THE EXCLUSIVE JURISDICTION OF THE AFOREMENTIONED COURTS; AND

(B) WAIVES ANY OBJECTION TO THAT CHOICE OF FORUM BASED ON VENUE OR TO THE EFFECT THAT THE FORUM IS NOT CONVENIENT.

27. DISPUTE RESOLUTION

In the event of dispute among the parties lasting greater than thirty (30) days, or any dispute, claim, or controversy arising out of or relating to this Agreement, the parties shall agree to mediation in Delaware. The parties shall be equally responsible for the costs of mediation.

If the parties are unable to resolve the dispute through mediation, then the parties may file suit pursuant to Section 26.

28. AMENDMENTS

The parties may not amend this Agreement except by written instrument signed by the parties.

29. COUNTERPARTS

This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which together shall be deemed to be one and the same agreement.

A signed copy of this Agreement delivered by facsimile, email, or other means of electronic transmission shall be deemed to have the same legal effect as delivery of an original signed copy of this Agreement.

30. FURTHER ASSURANCES

Each of the parties hereto shall execute and deliver, at the reasonable request of the other party hereto, such additional documents, instruments, conveyances and assurances and take such further actions as such other party may reasonably request to carry out the provisions hereof and give effect to the transactions contemplated by this Agreement.

31. ENTIRE AGREEMENT

This Agreement contains the entire understanding of the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous written or oral understandings, agreements, representations, and warranties with respect to such subject matter.

The invalidity, illegality, or unenforceability of any provision herein does not affect any other provision herein or the validity, legality, or enforceability of such provision in any other jurisdiction.

32. COMMERCIAL TERMS

The transaction-specific commercial terms applicable to this Agreement will be determined following the parties' discussion regarding the scope and structure of the partnership and will be reflected in the final Agreement prior to execution.

END OF PREVIEW COPY